

PUBLIC SUBMISSION

As of: March 21, 2025
Received: March 15, 2025
Status: [REDACTED]
Tracking No. m8b-1x7p-4zg5
Comments Due: March 15, 2025
Submission Type: API

Docket: NSF_FRDOC_0001
Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479
Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-7851
Comment on FR Doc # 2025-02305

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General Comment

Companies and individuals in the US enjoy robust intellectual property (IP) protection under copyright law. IP protection encourages incentivises innovation by ensuring that innovators can enjoy the benefits of having created their IP, be those first mover advantages, or, in the case of creative works, in the sale of licenses to use their work.

Any plan to develop artificial intelligence (AI) regulation must respect existing copyright law when incorporating IP into training data. Generative AI can be thought of as a competitor to those producing creative works by more traditional means. Failing to enforce copyright law does them material harm through the loss of license fees and disincentivises innovative creative work.

Discouraging the production of new original creative work by traditional means will also hurt the development of AI in the long run. There have been studies that show that AI models experience "model collapse" when too much AI-generated content is incorporated into their training set, which means new training data must be created by IP owners. Removing the basic IP protections already set out in US law will reduce the amount of new content available for training in the long run, hamstringing future innovation.